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Study Notes

**THE BHARATIYA NYAYA
SANHITA, 2023
Chapter XII - XIX**

OF OFFENCES BY OR RELATING TO PUBLIC SERVANTS CHAPTER XII SECTION 198-205

- **PUBLIC SERVANT DISOBEYING LAW, WITH INTENT TO CAUSE INJURY TO ANY PERSON (Section 198):**
 - A public servant who intentionally disobeys the law on how to conduct themselves, with the intent or knowledge that it may cause harm, shall **be punished with simple imprisonment for up to one year, or with fine, or with both.**
 - *Example:* A, being an officer directed by law to take property in execution, in order to satisfy a decree pronounced in Z's favour by a Court, knowingly disobeys that direction of law, with the knowledge that he is likely thereby to cause injury to Z. A has committed the offence defined in this section.
- **PUBLIC SERVANT DISOBEYING DIRECTION UNDER LAW (Section 199):**
 - **A public servant who:**
 - *knowingly disobeys the law*, specifically directions preventing them from compelling someone's attendance for an investigation;
 - *knowingly disobeys any law governing how they should conduct an investigation*, causing harm or prejudice to any person;
 - *fails to document information provided to them* under section 173(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, concerning cognizable offenses listed under sections 64-68, 70-71, 74, 76, 77, 79, 124, 143 or 144;

shall **be punished with rigorous imprisonment for a minimum of six months to a maximum of two years and shall also be liable to fine.**
- **PUNISHMENT FOR NONTREATMENT OF VICTIM (Section 200):**
 - Anyone overseeing a hospital, whether government or privately run, who violates section 397 of the Bharatiya Nagarik Suraksha Sanhita, 2023, shall **be liable to be punished with imprisonment for up to one year, or with fine, or with both.**
- **PUBLIC SERVANT FRAMING AN INCORRECT DOCUMENT WITH INTENT TO CAUSE INJURY (Section 201):**
 - A public servant tasked with preparing or translating documents or electronic records, who intentionally creates them incorrectly with the knowledge or belief that it may cause harm, shall **be punished with imprisonment for up to three years, or with fine, or with both.**
- **PUBLIC SERVANT UNLAWFULLY ENGAGING IN TRADE (Section 202):**
 - A public servant, legally obligated not to engage in trade, who violates this obligation shall **be liable to punishment with simple imprisonment for up to one year, or with fine, or with both, or community service.**

- **PUBLIC SERVANT UNLAWFULLY BUYING OR BIDDING FOR PROPERTY (Section 203):**
 - A public servant, obligated not to buy or bid for specific property, who does so in their name or someone else's, individually or jointly, shall **be liable to punishment with simple imprisonment for up to two years, or with fine, or with both.** Additionally, the **purchased property shall be confiscated.**
- **PERSONATING A PUBLIC SERVANT (Section 204):**
 - Anyone falsely claiming to hold a specific public servant office, knowing they don't, or impersonating someone else in such a position, and then acting or attempting to act in that capacity, shall **be punished with imprisonment for a minimum of six months and a maximum of three years, along with a fine.**
- **WEARING GARB OR CARRYING TOKEN USED BY PUBLIC SERVANT WITH FRAUDULENT INTENT (Section 205):**
 - Wearing attire or carrying symbols resembling those of a specific class of public servants with the intent to be mistaken as a public servant of that class shall **be punishable with imprisonment for up to three months, or with fine of up to five thousand rupees, or with both.**

**OF CONTEMPTS OF THE LAWFUL AUTHORITY OF PUBLIC SERVANTS CHAPTER XIII
SECTION 206-226**

- **ABSCONDING TO AVOID SERVICE OF SUMMONS OR OTHER PROCEEDING (Section 206):**
 - Anyone who goes into hiding to avoid receiving a summons, notice, or order from a legally competent public servant shall **be punished with imprisonment for up to one month, or with fine of up to five thousand rupees, or with both.**
 - If the summons or notice is related to a Court appearance, producing a document, or an electronic record, the punishment shall **be imprisonment for up to six months, a fine of up to ten thousand rupees, or with both.**
- **PREVENTING SERVICE OF SUMMONS OR OTHER PROCEEDING, OR PREVENTING PUBLICATION THEREOF (Section 207):**
 - Intentionally obstructing the delivery of a summons, notice, or order from a legally competent public servant, preventing lawful affixing or removal from an authorized place, or hindering the proclamation directed by a competent public servant shall **be punished with simple imprisonment for up to one month, or with fine of up to five thousand rupees, or with both.**
 - If the summons, notice, order, or proclamation involves a court appearance, producing a document, or an electronic record, the penalty shall include

imprisonment for up to six months, or with fine of up to ten thousand rupees, or with both.

▪ **NONATTENDANCE IN OBEDIENCE TO AN ORDER FROM PUBLIC SERVANT (Section 208):**

- Anyone legally required to appear at a specific place and time in response to a summons, notice, order, or proclamation from a competent public servant, who intentionally fails to attend or leaves before the lawful time to depart shall **be punished with simple imprisonment for up to one month, or with fine of up to five thousand rupees, or with both.**
- For non-attendance or departure before the lawful time at a court-ordered appearance, whether in person or by agent, the penalty shall **be imprisonment for up to six months, with fine of up to ten thousand rupees, or with both.**
 - o *Example:* A, being legally bound to appear before a High Court, in obedience to a subpoena issuing from that Court, intentionally omits to appear. A has committed the offence defined in this section.

▪ **NONAPPEARANCE IN RESPONSE TO A PROCLAMATION UNDER SECTION 84 OF BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 (Section 209):**

- Anyone failing to appear at the specified place and time as required by a proclamation under section 84 of the Bharatiya Nagarik Suraksha Sanhita, 2023, shall **be punished with imprisonment for up to three years, or with fine, or with both, or community service.**
 - o If declared a proclaimed offender, the punishment shall extend to **seven years and include fine.**

▪ **OMISSION TO PRODUCE DOCUMENT OR ELECTRONIC RECORD TO PUBLIC SERVANT BY PERSON LEGALLY BOUND TO PRODUCE IT (Section 210):**

- Failure to produce or deliver a document or electronic record as legally required to a public servant shall **be liable to punishment with imprisonment for up to one month, or with fine of up to five thousand rupees, or with both.**
- For not producing or delivering a document or electronic record to a Court as legally required, the punishment shall **be imprisonment for up to six months, or with fine of up to ten thousand rupees, or with both.**
 - o *Example:* A, being legally bound to produce a document before a District Court, intentionally omits to produce the same. A has committed the offence defined in this section.

▪ **OMISSION TO GIVE NOTICE OR INFORMATION TO PUBLIC SERVANT BY PERSON LEGALLY BOUND TO GIVE IT (Section 211):**

- Intentionally omitting to provide notice or information to a public servant as legally required shall **be punished with imprisonment for up to one month, or with fine of up to five thousand rupees, or with both.**
 - Failing to provide notice or information related to the commission of an offense, or for preventing its commission or apprehending an offender, the penalty **shall be imprisonment for up to six months, or with fine of up to ten thousand rupees, or with both.**
 - For not providing notice or information as required by an order under section 394 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the punishment shall **be imprisonment for up to six months, or with fine of up to one thousand rupees, or with both.**
- **FURNISHING FALSE INFORMATION (Section 212):**
- Providing false information to a public servant when legally obligated shall **be punished with imprisonment for up to six months, or with fine of up to five thousand rupees, or with both.**
 - If the false information, which the person is legally obligated to provide, is related to the commission of an offense, or is required to prevent an offense or apprehend an offender, the punishment shall **be imprisonment for up to two years, or with fine, or with both.**
 - Example: A, a landholder, knowing of the commission of a murder within the limits of his estate, wilfully misinforms the Magistrate of the district that the death has occurred by accident in consequence of the bite of a snake. A is guilty of the offence defined in this section.

NOTE:

In sections 211 and this section 212, the term "offense" encompasses acts committed outside India that, if committed within India, would be punishable under specific sections. These sections include 103, 105, 307, subsections (2), (3), and (4) of section 309, subsections (2), (3), (4), and (5) of section 310, 311, 312, clauses (f) and (g) of section 326, subsections (4), (6), (7), and (8) of section 331, and clauses (a) and (b) of section 332. The term "offender" includes any person accused of such acts.

- **REFUSING OATH OR AFFIRMATION WHEN DULY REQUIRED BY PUBLIC SERVANT TO MAKE IT (Section 213):**
- Refusing to take an oath or affirmation to tell the truth when legally required by a competent public servant shall **be punishable with imprisonment for up to six months, or with fine of up to five thousand rupees, or with both.**
- **REFUSING TO ANSWER PUBLIC SERVANT AUTHORISED TO QUESTION (Section 214):**

- Refusing to truthfully answer a public servant's lawful question, when legally obligated, shall **be punishable with imprisonment for up to six months, or with fine of up to five thousand rupees, or with both.**
- **REFUSING TO SIGN STATEMENT (Section 215):**
 - Refusing to sign a statement when legally required by a competent public servant shall **be punishable with imprisonment for up to three months, or with fine of up to three thousand rupees, or with both.**
- **FALSE STATEMENT ON OATH OR AFFIRMATION TO PUBLIC SERVANT OR PERSON AUTHORISED TO ADMINISTER AN OATH OR AFFIRMATION (Section 216):**
 - Providing false information under oath to a public servant or another authorized person, when legally obligated to speak the truth, shall **be punishable with imprisonment for up to three years and shall also be liable to fine.**
- **FALSE INFORMATION, WITH INTENT TO CAUSE PUBLIC SERVANT TO USE HIS LAWFUL POWER TO INJURY OF ANOTHER PERSON (Section 217):**
 - **Providing false information to a public servant with the intention to:**
 - o *act improperly or refrain from necessary actions by providing false information;*
 - o *to use the lawful power of such public servant to the injury or annoyance of any person,*

shall **be punishable with imprisonment for up to one year, or with fine of up to ten thousand rupees, or with both.**

✚ Example: A informs a Magistrate that Z, a police officer, subordinate to such Magistrate, has been guilty of neglect of duty or misconduct, knowing such information to be false, and knowing it to be likely that the information will cause the Magistrate to dismiss Z. A has committed the offence defined in this section.
- **RESISTANCE TO TAKING OF PROPERTY BY LAWFUL AUTHORITY OF A PUBLIC SERVANT (Section 218):**
 - Resisting the lawful authority of a public servant during the taking of any property shall **be punishable with imprisonment for up to six months, or with fine of up to ten thousand rupees, or with both.**
- **OBSTRUCTING SALE OF PROPERTY OFFERED FOR SALE BY AUTHORITY OF PUBLIC SERVANT (Section 219):**
 - Intentionally obstructing the sale of property conducted by the lawful authority of a public servant shall **be punishable with imprisonment for up to one month, or with fine of up to five thousand rupees, or with both.**

- **ILLEGAL PURCHASE OR BID FOR PROPERTY OFFERED FOR SALE BY AUTHORITY OF PUBLIC SERVANT (Section 220):**
 - Purchasing or bidding for property on behalf of someone legally incapable or bidding without intending to fulfill the obligations at a public sale authorized by a public servant shall **be punishable with imprisonment for up to one month, or with fine of up to two hundred rupees, or with both.**
- **OBSTRUCTING PUBLIC SERVANT IN DISCHARGE OF PUBLIC FUNCTIONS (Section 221):**
 - Voluntarily obstructing a public servant while performing their duties shall **be punishable with imprisonment for up to three months, or with fine of up to two thousand and five hundred rupees, or with both.**
- **OMISSION TO ASSIST PUBLIC SERVANT WHEN BOUND BY LAW TO GIVE ASSISTANCE (Section 222):**
 - Failing to provide assistance to a public servant as required by law shall **be punishable with simple imprisonment for up to one month, or with fine of up to two thousand and five hundred rupees, or with both.**
 - Refusing to provide assistance to a public servant when legally demanded for executing a court process, preventing an offence, suppressing a riot or affray, or apprehending an offender, **shall be punishable with simple imprisonment for up to six months, or with fine of up to five thousand rupees, or with both.**
- **DISOBEDIENCE TO ORDER DULY PROMULGATED BY PUBLIC SERVANT (Section 223):**
 - **Disobeying a lawful order from a public servant**, directing one to refrain from a specific act or take certain actions with particular property shall, if the disobedience results in:
 - o obstruction, annoyance, or injury to anyone lawfully employed, the offender, **be punished with simple imprisonment for up to six months, or with fine up to two thousand and five hundred rupees, or with both.**
 - o in endangering human life, health, or safety, or causes a riot or affray, the offender, shall be punished with imprisonment for up to one year, or with fine up to five thousand rupees, or with both.
 - **Intent to harm is not a requirement for the offense.** It is enough if the offender is aware of the order, disobeys it, and this disobedience causes or is likely to cause harm.
 - o Example: An order is promulgated by a public servant lawfully empowered to promulgate such order, directing that a religious procession shall not pass down a certain street. A knowingly disobeys the order, and thereby causes danger of riot. A has committed the offence defined in this section.

- **THREAT OF INJURY TO PUBLIC SERVANT (Section 224):**
 - Threatening a public servant or someone connected to them to influence their actions in the exercise of their public functions shall **be punishable with imprisonment for up to two years, or with a fine, or with both.**
- **THREAT OF INJURY TO INDUCE PERSON TO REFRAIN FROM APPLYING FOR PROTECTION TO PUBLIC SERVANT (Section 225):**
 - Threatening a person to deter them from legally applying for protection against any injury to a public servant, who is legally empowered to provide such protection, shall **be punishable with imprisonment for up to one year, or with a fine, or with both.**
- **ATTEMPT TO COMMIT SUICIDE TO COMPEL OR RESTRAIN EXERCISE OF LAWFUL POWER (Section 226):**
 - Attempting suicide with the intent to compel or restrain a public servant from discharging official duties shall **be punishable with imprisonment for up to one year, or with a fine, or with both, or with community service.**

OF FALSE EVIDENCE AND OFFENCES AGAINST PUBLIC JUSTICE CHAPTER XIV SECTION 227-269

- **GIVING FALSE EVIDENCE (Section 227):**
 - Giving false evidence refers to **making a false statement under oath, violating a legal obligation to speak the truth or make a truthful declaration.**
 - A false statement, **whether spoken or expressed in other forms**, falls under this section.
 - Additionally, **making a false statement about one's belief** is also considered giving false evidence. This **includes** falsely claiming to believe something one doesn't, similar to falsely asserting knowledge.
 - Example: A, in support of a just claim which B has against Z for one thousand rupees, falsely swears on a trial that he heard Z admit the justice of B's claim. A has given false evidence.
- **FABRICATING FALSE EVIDENCE (Section 228):**
 - Creating false circumstances, entries in records, or false statements in documents, electronic records, with the intention of presenting them as evidence in a judicial or legal proceeding, aiming to influence someone's opinion and potentially lead to a mistaken conclusion in that proceeding, is termed as "fabricating false evidence."
 - Example: A puts jewels into a box belonging to Z, with the intention that they may be found in that box, and that this circumstance may cause Z to be convicted of theft. A has fabricated false evidence.

▪ **PUNISHMENT FOR FALSE EVIDENCE (Section 229):**

- Providing false evidence or creating fabricated evidence with the intent to use it in any stage of a judicial proceeding shall **be punishable with imprisonment up to seven years and a fine of up to ten thousand rupees.**
- Providing false evidence or creating fabricated evidence in any case, other than the one mentioned above, shall **be punishable with imprisonment for up to three years and a fine of up to five thousand rupees.**
- A **trial before a Court-martial** is considered a judicial proceeding. Additionally, an **investigation mandated by law, even if it occurs outside of a Court**, is regarded as a stage of a judicial proceeding.
- An **investigation ordered by a Court in accordance with the law and conducted under the Court's authority** is considered a stage of a judicial proceeding, even if the investigation itself doesn't occur within the Court premises.

o Example:

- ✚ A, in an enquiry before a Magistrate for the purpose of ascertaining whether Z ought to be committed for trial, makes on oath a statement which he knows to be false. As this enquiry is a stage of a judicial proceeding, A has given false evidence.
- ✚ A, in an enquiry before an officer deputed by a Court to ascertain on the spot the boundaries of land, makes on oath a statement which he knows to be false. As this enquiry is a stage of a judicial proceeding, A has given false evidence.

▪ **GIVING OR FABRICATING FALSE EVIDENCE WITH INTENT TO PROCURE CONVICTION OF CAPITAL OFFENCE (Section 230):**

- If someone provides false evidence with the intention of causing the wrongful conviction of a person for a capital offense, they shall **be punished with life imprisonment or rigorous imprisonment up to ten years, along with a fine of up to fifty thousand rupees.**
- If an innocent person is wrongly convicted and executed due to false evidence, the person giving such false evidence shall **be punished with either death or the penalty mentioned in the above provision.**

▪ **GIVING OR FABRICATING FALSE EVIDENCE WITH INTENT TO PROCURE CONVICTION OF OFFENCE PUNISHABLE WITH IMPRISONMENT FOR LIFE OR IMPRISONMENT (Section 231):**

- If someone provides false evidence with the intention of getting someone convicted, or knowing that it could lead to conviction for a non-capital offense punishable by life imprisonment or at least seven years, they shall **be punished as if they committed the offense themselves.**
 - o Example: A gives false evidence before a Court, intending thereby to cause Z to be convicted of a dacoity. The punishment of dacoity is imprisonment for life, or rigorous imprisonment for a term which may extend to ten years,

with or without fine. A, therefore, is liable to imprisonment for life or imprisonment, with or without fine.

- **THREATENING ANY PERSON TO GIVE FALSE EVIDENCE (Section 232):**
 - Anyone who threatens another person, intending to make them provide false evidence by causing harm to their person, reputation, or property, shall **be punishable with imprisonment up to seven years, or with fine, or with both.**
 - If an innocent person is wrongly convicted and receives a death sentence or imprisonment exceeding seven years due to false evidence, the person who made the threats leading to the false evidence shall **be punished with the same severity as the innocent person, in the same manner and to the same extent.**
- **USING EVIDENCE KNOWN TO BE FALSE (Section 233):**
 - Anyone who knowingly uses or tries to use false or fabricated evidence as if it were true shall **be punished in the same way as if they had given or fabricated that false evidence.**
- **ISSUING OR SIGNING FALSE CERTIFICATE (Section 234):**
 - Anyone who issues or signs a certificate required by law, or related to a fact admissible in evidence, knowing or believing it to be false in any material aspect, shall **be punished as if they had given false evidence.**
- **USING AS TRUE A CERTIFICATE KNOWN TO BE FALSE (Section 235):**
 - Anyone who corruptly uses or tries to use a certificate as if it were true, knowing it to be false in any material aspect, **shall be punished in the same manner as if they had given false evidence.**
- **FALSE STATEMENT MADE IN DECLARATION WHICH IS BY LAW RECEIVABLE AS EVIDENCE (Section 236):**
 - Anyone who, in a declaration that a court, public servant, or authorized person is legally bound to accept as evidence, knowingly makes a false statement regarding a material point related to the purpose of the declaration, **shall be punished in the same manner as if they had given false evidence.**
- **USING AS TRUE SUCH DECLARATION KNOWING IT TO BE FALSE (Section 237):**
 - Anyone who corruptly uses or attempts to use a declaration as if it were true, knowing it to be false in any material aspect, shall **be punished in the same manner as if they had given false evidence.**
 - *Even if a declaration is deemed inadmissible due to some informality, it is still considered a declaration under the relevant sections.*

- **CAUSING DISAPPEARANCE OF EVIDENCE OF OFFENCE, OR GIVING FALSE INFORMATION TO SCREEN OFFENDER (Section 238):**
 - Anyone who, knowing or suspecting that a crime has occurred, **intentionally makes evidence disappear to shield the offender from legal consequences, or provides false information about the offense with the same intention, shall:**
 - o if the known or believed offense is punishable with death, the person shall *be punished with imprisonment for up to seven years and fined.*
 - o if the offense carries a punishment of life imprisonment or up to ten years, the punishment shall *be imprisonment for up to three years along with a fine.*
 - o for offenses punishable with imprisonment for less than ten years, the punishment shall *be imprisonment for up to one-fourth of the longest term prescribed for the offense, or a fine, or both.*
 - ✚ Example: A, knowing that B has murdered Z, assists B to hide the body with the intention of screening B from punishment. A is liable to imprisonment of either description for seven years, and also to fine.
- **INTENTIONAL OMISSION TO GIVE INFORMATION OF OFFENCE BY PERSON BOUND TO INFORM (Section 239):**
 - Anyone who, knowing or suspecting that an offense has occurred, deliberately fails to provide information about that offense, which they are legally obligated to give, shall **be punished with imprisonment for up to six months, or with fine that may extend to five thousand rupees, or with both.**
- **GIVING FALSE INFORMATION RESPECTING AN OFFENCE COMMITTED (Section 240):**
 - Anyone who, knowing or having reason to believe that an offense has been committed, provides false information about that offense, which they know or believe to be untrue, shall **be punished with imprisonment for up to two years, or with fine, or with both.**
 - In sections 238, 239, and this section, **the term "offence" encompasses any act committed outside of India that, if carried out within India, would be punishable under specific sections, including 103, 105, 307, section 309 (2) (3) (4), sub-sections (2), (3), (4), and (5) of section 310, 311, 312, section 326 (f) (g), section 331 (4) (6) (7) (8), and section 332 (a) & (b).**
- **DESTRUCTION OF DOCUMENT OR ELECTRONIC RECORD TO PREVENT ITS PRODUCTION AS EVIDENCE (section 241):**
 - Anyone who hides, destroys, or alters a document or electronic record that they are legally obligated to produce as evidence in court or before a public servant,

with the intent to prevent its use in legal proceedings, shall **be punished with imprisonment for up to three years, or with fine up to five thousand rupees, or with both.**

- **FALSE PERSONATION FOR PURPOSE OF ACT OR PROCEEDING IN SUIT OR PROSECUTION (Section 242):**
 - Anyone who falsely impersonates another, and in that assumed identity makes any admission, statement, confesses judgment, issues a process, becomes bail or security, or performs any other act in a legal or criminal case, shall **be punished with imprisonment for up to three years, or with fine, or with both.**
- **FRAUDULENT REMOVAL OR CONCEALMENT OF PROPERTY TO PREVENT ITS SEIZURE AS FORFEITED OR IN EXECUTION (Section 243):**
 - Anyone who fraudulently removes, conceals, transfers, or delivers any property or interest in property with the intention of preventing it from being taken as a forfeiture or to satisfy a fine under a court sentence, or to evade execution of a civil suit decree, shall **be punished with imprisonment for up to three years, or with fine up to five thousand rupees, or with both.**
- **FRAUDULENT CLAIM TO PROPERTY TO PREVENT ITS SEIZURE AS FORFEITED OR IN EXECUTION (Section 244):**
 - Anyone who fraudulently accepts, receives, or claims any property or interest therein, knowing that they have no rightful claim to such property, or engages in deception regarding any right to the property or interest, with the intention of preventing it from being taken as a forfeiture or to satisfy a fine under a court sentence, or to evade execution of a civil suit decree, shall **be punished with imprisonment for up to two years, or with fine, or with both.**
- **FRAUDULENTLY SUFFERING DECREE FOR SUM NOT DUE (Section 245):**
 - Anyone who fraudulently causes or allows a Court decree or order to be issued against them, falsely claiming a sum not due or a larger sum than owed, or for any property or interest to which the claimant is not entitled, or fraudulently allows the execution of a decree after it has been satisfied, shall **be punished with imprisonment for up to two years, or with fine, or with both.**
 - o Example: A institutes a suit against Z. Z, knowing that A is likely to obtain a decree against him, fraudulently suffers a judgment to pass against him for a larger amount at the suit of B, who has no just claim against him, in order that B, either on his own account or for the benefit of Z, may share in the proceeds of any sale of Z's property which may be made under A's decree. Z has committed an offence under this section.
- **DISHONESTLY MAKING FALSE CLAIM IN COURT (Section 246):**

- Anyone who fraudulently, dishonestly, or with the intent to injure or annoy any person, makes a false claim in Court that they know to be untrue, shall **be punished with imprisonment for up to two years and shall also be liable to pay a fine.**
- **FRAUDULENTLY OBTAINING DECREE FOR SUM NOT DUE (Section 247):**
 - Anyone who fraudulently obtains a Court decree or order against someone for a sum not owed, or for a larger sum than owed, or for any property or interest to which they are not entitled, or fraudulently causes the execution of a decree after it has been satisfied, or for anything in respect of which it has been satisfied, or allows such acts to be done in their name, shall **be punished with imprisonment for up to two years, or with fine, or with both.**
- **FALSE CHARGE OF OFFENCE MADE WITH INTENT TO INJURE (Section 248):**
 - Anyone who, with the intent to cause harm to another person, initiates or causes the initiation of any criminal proceeding against that person or falsely accuses them of committing an offense, knowing that there is no just or lawful basis for such proceeding or charge, shall **be punished with imprisonment for up to five years, or with fine up to two lakh rupees, or with both.**
 - If the false criminal proceeding is initiated with a charge of an offense punishable with death, life imprisonment, or imprisonment for ten years or more, the person responsible shall **be punishable with imprisonment for up to ten years and shall also be liable to pay a fine.**
- **HARBOURING OFFENDER (Section 249):**
 - If someone hides a person they know or believe to be a criminal, with the intention of protecting them from punishment, and the offense is punishable by death, the person hiding them shall be imprisoned for up to five years and shall also be liable to fine.
 - If the offense is punishable with life imprisonment or imprisonment up to ten years, the person harboring or concealing the offender shall **be imprisoned for up to three years and may also be liable to pay a fine.**
 - If the offense is punishable with imprisonment for up to one year (but not exceeding ten years), those hiding the offender shall **be liable to imprisonment of the kind specified for the offense, lasting up to one-fourth of the maximum imprisonment term allowed and shall also be fined or subjected to both imprisonment and fine.**
 - **In this section, the term "offence" encompasses any act committed outside of India that, if committed within India, would be punishable under specific sections, including section 103, 105, 307, section 309 (2) (3) (4), sub-sections (2), (3), (4), and (5) of section 310, 311, 312, section 326 (f) & (g), section 331 (4)**

(6) (7) (8), and section 332 (a) & (b). For the purposes of this section, such acts are treated as if the accused person had committed them in India.

- o Example: A, knowing that B has committed dacoity, knowingly conceals B in order to screen him from legal punishment. Here, as B is liable to imprisonment for life, A is liable to imprisonment of either description for a term not exceeding three years, and is also liable to fine

NOTE:

This section shall not extend to any case in which the harbour or concealment is by the spouse of the offender

- **TAKING GIFT, ETC., TO SCREEN AN OFFENDER FROM PUNISHMENT (Section 250):**
 - **Anyone who** accepts, tries to obtain, or agrees to accept any gratification for themselves or another person, or any restitution of property for themselves or another person, in exchange for concealing an offense, **shielding someone from legal punishment, or refraining from initiating legal proceedings against someone for the purpose of bringing them to legal punishment shall:**
 - o if the *crime is punishable by death*, they shall be *imprisoned for up to seven years and fined*; or
 - o if the *crime is punishable by life imprisonment or up to ten years*, they shall be *imprisoned for up to three years and fined*; or
 - o if the *crime is punishable by imprisonment for less than ten years*, they shall be *imprisoned for a quarter of the maximum term, or fined, or both*.
- **OFFERING GIFT OR RESTORATION OF PROPERTY IN CONSIDERATION OF SCREENING OFFENDER (Section 251):**
 - Anyone providing, causing, offering, or agreeing to give gratification or restoring property to someone, in exchange for that person concealing an offense, shielding someone from legal punishment, or refraining from pursuing legal action against someone for the purpose of bringing them to legal punishment shall:
 - o if the offense is punishable with death, the person shall be imprisoned for up to seven years and fined; or
 - o if the offense is punishable with life imprisonment or up to ten years, the person shall be imprisoned for up to three years and fined; or
 - o if the offense is punishable with imprisonment for less than ten years, the person shall be imprisoned for up to one-fourth of the longest term or fined, or both.
 - **Exception:** These provisions *do not apply if the offense can lawfully be settled or compounded, as per section 250*.
- **TAKING GIFT TO HELP TO RECOVER STOLEN PROPERTY, ETC. (Section 252):**

- Anyone who accepts or agrees to take any gratification under the pretense or on account of assisting someone in recovering any movable property, which was unlawfully taken from them under an offense punishable under this code, shall **be punished with imprisonment for up to two years, or fined, or both, unless they actively work to apprehend and ensure the conviction of the offender.**
- **HARBOURING OFFENDER WHO HAS ESCAPED FROM CUSTODY OR WHOSE APPREHENSION HAS BEEN ORDERED (Section 253):**
 - If a person convicted or charged with an offense escapes from lawful custody or a public servant orders someone's arrest for an offense, anyone who knowingly harbors or conceals that person with the intention of preventing their apprehension shall:
 - o if the offense for which the person was in custody or is ordered to be apprehended is punishable with death, the offender shall *be punished with imprisonment for up to seven years and fined; or*
 - o if the offense is punishable with life imprisonment or imprisonment for ten years, the offender shall *be punished with imprisonment for up to three years, with or without a fine; or*
 - o if the offense is punishable with imprisonment ranging from one year to less than ten years, the offender shall *be punished with imprisonment of the type provided for that offense, for up to one-fourth of the longest term of imprisonment allowed for such offense, or fined, or both.*
 - In this section, "**offence**" also includes any act or omission for which a person is alleged to have been guilty outside of India. If the same act or omission, if committed in India, would have been punishable as an offence, and the person is, under any law related to extradition or otherwise, liable to be apprehended or detained in custody in India, then every such act or omission is deemed punishable under this section as if the accused person had been guilty of it in India.
 - **Exception:** This section *does not apply when the harboring or concealment is done by the spouse of the person to be apprehended.*
- **PUBLIC SERVANT DISOBEYING DIRECTION OF LAW WITH INTENT TO SAVE PERSON FROM PUNISHMENT OR PROPERTY FROM FORFEITURE (Section 255):**
 - If a public servant knowingly disobeys the law related to their conduct with the intention of saving someone from legal punishment, subjecting them to a lesser punishment, or saving property from forfeiture or charges, they shall **be punished with imprisonment for up to two years, a fine, or both.**
- **PUBLIC SERVANT FRAMING INCORRECT RECORD OR WRITING WITH INTENT TO SAVE PERSON FROM PUNISHMENT OR PROPERTY FROM FORFEITURE (Section 256):**
 - If a public servant, entrusted with preparing any record or writing, intentionally creates it inaccurately, knowing that it may cause loss or injury to the public or any

person, or with the intent to save someone from legal punishment or protect property from forfeiture, they shall **be punished with imprisonment for up to three years, or with fine, or with both.**

- **PUBLIC SERVANT IN JUDICIAL PROCEEDING CORRUPTLY MAKING REPORT, ETC., CONTRARY TO LAW (Section 257):**
 - A public servant who, corruptly or maliciously, makes or pronounces any report, order, verdict, or decision in any stage of a judicial proceeding, knowing it to be contrary to law, shall **be punished with imprisonment for up to seven years, or with fine, or with both.**
- **COMMITMENT FOR TRIAL OR CONFINEMENT BY PERSON HAVING AUTHORITY WHO KNOWS THAT HE IS ACTING CONTRARY TO LAW (Section 258):**
 - Any person holding an office that grants legal authority to commit individuals for trial or confinement, or to keep individuals in confinement, who corruptly or maliciously commits or keeps a person in confinement, knowing that such actions are contrary to the law, shall **be punished with imprisonment for up to seven years, or with fine, or with both.**
- **INTENTIONAL OMISSION TO APPREHEND ON PART OF PUBLIC SERVANT BOUND TO APPREHEND (Section 259):**
 - A public servant who, legally obligated to apprehend or keep in confinement any person charged with or liable to be apprehended for an offense, **intentionally** fails to apprehend, allows the person to escape, or aids in their escape, shall be subject to punishment:
 - o if the offense is punishable with death, the public servant shall *be liable to punishment of imprisonment for up to seven years, with or without a fine;* or
 - o if the offense is punishable with life imprisonment or imprisonment for up to ten years, the public servant shall *be liable to punishment of imprisonment for up to three years, with or without a fine;* or
 - o if the offense is punishable with imprisonment for a term less than ten years, the public servant shall *be liable to punishment of imprisonment for up to two years, with or without a fine.*
- **INTENTIONAL OMISSION TO APPREHEND ON PART OF PUBLIC SERVANT BOUND TO APPREHEND PERSON UNDER SENTENCE OR LAWFULLY COMMITTED (Section 260):**
 - A public servant, who is legally obligated to apprehend or keep in confinement any person under sentence of a Court for an offense or lawfully committed to custody, **but** intentionally omits to apprehend, allows escape, or aids in the escape of such person, shall be subjected to punishment:

- o for a public servant, who intentionally omits to apprehend or allows the escape of a person under sentence of death, shall *be imprisonment for life or imprisonment for a term which may extend to fourteen years, with or without a fine; or*
 - o for a public servant who intentionally fails to apprehend or allows the escape of a person sentenced to life imprisonment or ten years or more shall *be liable to imprisonment for up to seven years, with or without a fine; or*
 - o for a public servant intentionally omitting to apprehend or aiding the escape of a person sentenced to less than ten years or lawfully in custody shall *be punished with imprisonment for up to three years, or with fine, or with both.*
- **ESCAPE FROM CONFINEMENT OR CUSTODY NEGLIGENTLY SUFFERED BY PUBLIC SERVANT (Section 261):**
 - A public servant, who is legally obligated to keep a person charged with or convicted of an offense in confinement but negligently allows that person to escape, shall **be punished with simple imprisonment for up to two years, or with fine, or with both.**
- **RESISTANCE OR OBSTRUCTION BY A PERSON TO HIS LAWFUL APPREHENSION (Section 262):**
 - Anyone who intentionally resists or obstructs the lawful apprehension for an offense they are charged with or convicted of, or escapes or attempts to escape from lawful custody for such an offense, shall **be punished with imprisonment for up to two years, or with fine, or with both.**
 - o The *punishment specified herein is in addition to any other punishment* that the person to be apprehended or detained in custody was liable for the offense with which they were charged or convicted.
- **RESISTANCE OR OBSTRUCTION TO LAWFUL APPREHENSION OF ANOTHER PERSON (Section 263):**
 - **Anyone who intentionally resists or unlawfully obstructs the lawful apprehension of another person** for an offense or rescues, or attempts to rescue, another person from lawful custody in which they are detained for an offense shall:
 - o *be imprisonment for upto two years, or with fine, or with both; or*
 - o if the person to be apprehended, or rescued or attempted to be rescued, is charged with or liable to be apprehended for an offense punishable with:
 - ✚ *imprisonment for life or imprisonment for a term up to ten years, the punishment shall be imprisonment of either description for up to three years, and also liable to a fine; or*
 - ✚ *death, the punishment shall be imprisonment of either description for up to seven years, and also liable to a fine; or*

- o if the person to be apprehended, rescued, or attempted to be rescued is:
 - ✚ liable under the sentence of a Court or by virtue of a commutation of such a sentence to imprisonment for life or imprisonment for a term of ten years or upwards, the punishment shall *be imprisonment of either description for up to seven years, and also liable to a fine;* or
 - ✚ under a death sentence, the punishment shall *be imprisonment for life or for a term not exceeding ten years, along with a fine.*
- **OMISSION TO APPREHEND, OR SUFFERANCE OF ESCAPE, ON PART OF PUBLIC SERVANT, IN CASES NOT OTHERWISE PROVIDED FOR (Section 264):**
 - A public servant who **fails to apprehend or allows the escape of a person**, where specific provisions are not covered in sections 259-261, shall be punished:
 - o if *does so intentionally*, shall *be punished with imprisonment for up to three years, or with fine, or with both;*
 - o if *he does so negligently*, the punishment shall *be simple imprisonment for up to two years, or with fine, or with both.*
- **RESISTANCE OR OBSTRUCTION TO LAWFUL APPREHENSION OR ESCAPE OR RESCUE IN CASES NOT OTHERWISE PROVIDED FOR (Section 265):**
 - If a person intentionally resists, obstructs lawful apprehension, escapes, or attempts to escape custody, or rescues or attempts to rescue another person from lawful detention, and the case is not covered by other specific laws, they shall **be punished with imprisonment of either description for up to six months, or with fine, or with both.**
- **VIOLATION OF CONDITION OF REMISSION OF PUNISHMENT (Section 266):**
 - If a person, having accepted conditional remission of punishment, knowingly violates any condition on which such remission was granted, they shall be punished with the original sentence if they have not yet served any part of it. If they have already served a portion of the original sentence, they shall **be punished with the remaining part of the original sentence that they have not yet undergone.**
- **INTENTIONAL INSULT OR INTERRUPTION TO PUBLIC SERVANT SITTING IN JUDICIAL PROCEEDING (Section 267):**
 - If someone intentionally insults or interrupts a public servant during a judicial proceeding, they shall **be punished with simple imprisonment for up to six months, or with fine up to five thousand rupees, or with both.**
- **PERSONATION OF ASSESSOR (Section 268):**

- If someone intentionally causes or allows themselves to be included as an assessor in a case, knowing that they are not legally entitled to be included or, if already included, knowingly continues to serve as an assessor contrary to the law, they shall **be punished with imprisonment for up to two years, or with a fine, or with both.**
- **FAILURE BY PERSON RELEASED ON BAIL BOND OR BOND TO APPEAR IN COURT (Section 269):**
 - If an individual, who has been charged with an offence and released on bail bond or on bond, fails to appear in court without sufficient cause (with the burden of proving the cause lying upon them), they shall **be punished with imprisonment for a term up to one year, or with a fine, or with both.**
 - **The punishment under this section is:**
 - o *in addition* to the punishment the offender would face upon conviction for the charged offence; and
 - o *without prejudice to the power of the Court* to order forfeiture of the bond.

OF AFFECTING THE PUBLIC HEALTH, SAFETY, CONVENIENCE, DECENCY AND MORALS CHAPTER XV SECTION 270-297

SECTIONS IN BNS	PROVISIONS SAME/AMENDED
▪ Section 270- 273, 281, 295 (IPC 272, 273, 275, 276, 277, 282, 284, 287, 286, 289, 288, 291) ▪ Section 274 Adulteration of food or drink intended for sale ▪ Section 275 Sale of noxious food or drink ▪ Section 277 Sale of adulterated drugs ▪ Section 278 Sale of drug as a different drug or preparation ▪ Section 279 Fouling water of public spring or reservoir ▪ Section 284 Conveying person by water for hire in unsafe or overloaded vessel ▪ Section 286 Negligent conduct with respect to poisonous substance ▪ Section 288 Negligent conduct with respect to explosive substance ▪ Section 289 Negligent conduct with respect to machinery ▪ Section 290 Negligent conduct with respect to pulling down, repairing or constructing buildings, etc. ▪ Section 291 Negligent conduct with respect to animal ▪ Section 293 Continuance of nuisance after injunction to discontinue	SAME Provisions as in IPC: Structural Change in Section no. AMENDED PROVISIONS: : Structural Change in Section no. Imprisonment upto six months, or with fine upto five thousand rupees, or with both
(IPC 274) ▪ Section 276 Adulteration of drugs	Imprisonment up to one year, or with fine up to five thousand rupees, or with both
(IPC 278) ▪ Section 280 Making atmosphere noxious to health	Punished with fine which may extend to one thousand rupees

(IPC 280) ▪ Section 282 Rash navigation of vessel	Imprisonment up to six months, or with fine up to ten thousand rupees, or with both
(IPC 281) ▪ Section 283 Exhibition of false light, mark or buoy	Imprisonment up to seven years, and with fine which shall not be less than ten thousand rupees
(IPC 273) ▪ Section 285 Danger or obstruction in public way or line of navigation	Punished with fine upto five thousand rupees
(IPC 285) ▪ Section 287 Negligent conduct with respect to fire or combustible matter	Imprisonment up to six months, or with fine up to two thousand rupees, or with both
(IPC 290) ▪ Section 292 Punishment for public nuisance in cases not otherwise provided for	Punished with fine which may extend to one thousand rupees
(IPC 292) ▪ Section 294 Sale, etc., of obscene books, etc.	First conviction: imprisonment up to two years and a fine up to five thousand rupees Second or subsequent conviction: imprisonment up to five years and a fine up to ten thousand rupees
(IPC 294) ▪ Section 296 Obscene acts and songs	Imprisonment up to three months, or with fine up to one thousand rupees, or with both
(IPC 294A) ▪ Section 297 Keeping lottery office	Publishes a proposal to pay a sum, deliver goods, or perform any action for the benefit of someone based on the outcome of a lottery draw shall be punished with a fine of up to five thousand rupees

OF OFFENCES RELATING TO RELIGION CHAPTER XVI SECTION 298-302

- **SAME PROVISIONS AS IN IPC.**

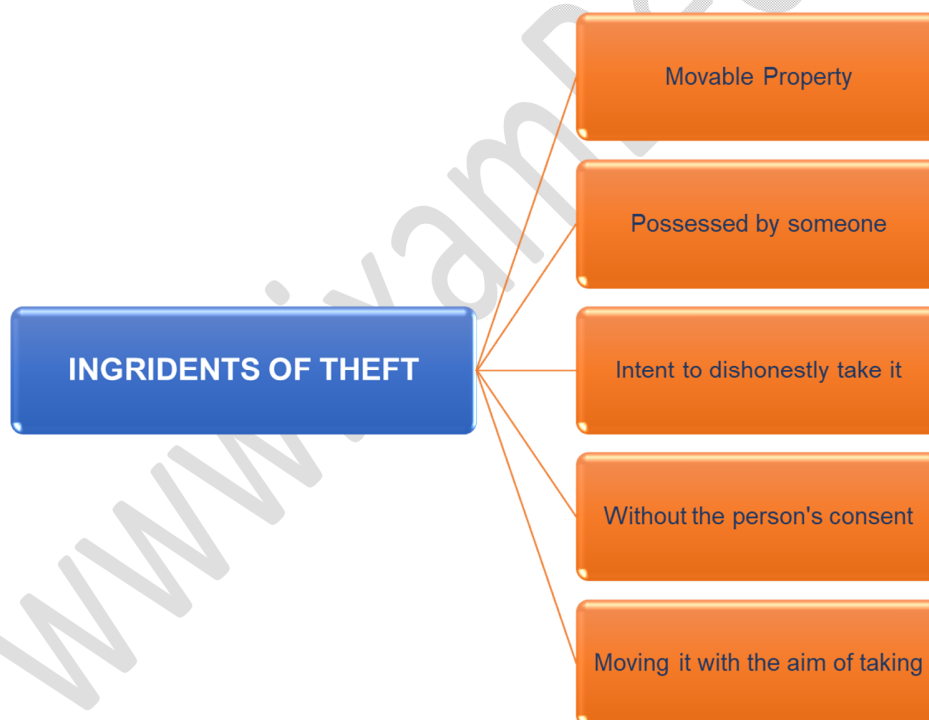
OF OFFENCES AGAINST PROPERTY CHAPTER XVII SECTION 303-332

- The **Indian Constitution recognizes and guarantees the right to property for citizens.**
- Property is seen as **an extension of an individual's personality**, and protecting it brings satisfaction. This chapter serves to deter and penalize offenders while securing individuals' right to property.



▪ **OF THEFT (Section 303):**

- Theft is **when someone moves another person's property without permission, intending to take it dishonestly.**
- Theft **applies to movable property**, not things attached to the earth. Once detached, it can be stolen.
- If a theft **involves moving and severing at the same time**, it still qualifies as theft.
- Making something move **by removing obstacles or separating it from another thing** constitutes theft.
- If a person **makes an animal move**, they are considered to have moved everything influenced by that animal's motion.
- **Consent for possession can be express or implied**, given by the person in possession or someone with authority for that purpose.
 - o Example: A cuts down a tree on Z's ground, with the intention of dishonestly taking the tree out of Z's possession without Z's consent. Here, as soon as A has severed the tree in order to such taking, he has committed theft.



THEFT INGREDIENTS

- **MOVABLE PROPERTY:** To constitute theft, the property *must be movable*, capable of being carried. Immovable property, permanently attached to the earth, is not subject to theft until it is severed and becomes movable without the owner's consent. Example, a standing tree is immovable, but once cut down, it becomes movable.
In the case of **Pyarelal Bhargava v., the State of Rajasthan**, the Court ruled that even temporary removal of property with the intent to restore it constitutes theft, challenging the notion that theft requires a permanent loss.
- **POSSESSED BY SOMEONE:** For theft to occur, the stolen property *must be in the possession of another person*. Mere intention to take property dishonestly is not an offense; *actual removal from another person's possession is crucial*.
The case of **Rakesh v. State of NCT of Delhi** emphasized that until the property is physically taken, no offense has been committed, aligning with Section 378 of the IPC (BNS S. 303)
- **INTENT TO DISHONESTLY TAKE IT:** Dishonest intention is a crucial element in theft. Taking property alone is not considered theft; it *must be accompanied by an intention to cause wrongful gain to one person and wrongful loss to another*. The dishonest intent to benefit oneself at the expense of another is what defines theft.
- **WITHOUT THE PERSON'S CONSENT:** *Taking someone's property without their prior consent, whether expressed or implied*, constitutes theft. The offense occurs when the property is taken dishonestly and without the owner's consent. The key elements are the *lack of permission and the dishonest intent* of the offender.
- **MOVING IT WITH THE AIM OF TAKING:** Moving a property with a dishonest intention is the initial stage of committing theft. The *act of moving the property is essential* for the offense to be committed. The *combination of dishonest intent and the physical movement of the property* constitutes the crime of theft.

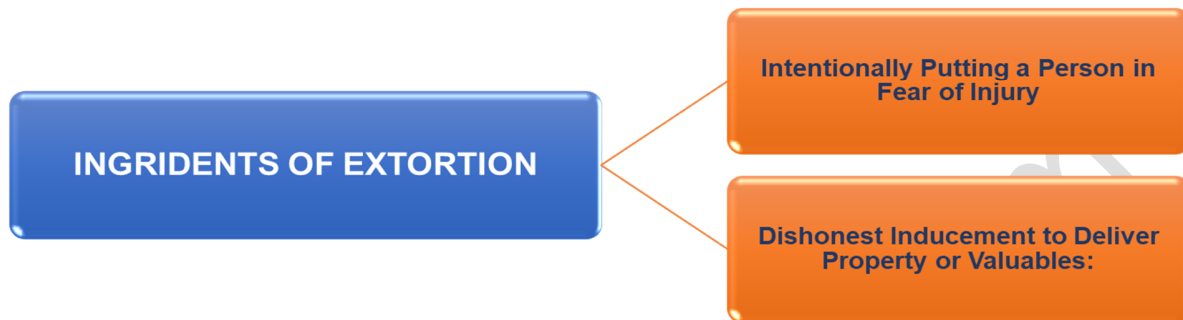
- **Punishment:**

- Anyone committing theft shall **be punished with imprisonment up to three years, or with fine, or with both.**
- Second or subsequent conviction, the punishment **includes rigorous imprisonment ranging from one to five years, along with a fine.**

- In cases where the **stolen property is valued at less than five thousand rupees and it's the first offense**, the person, upon returning or restoring the property, shall **be sentenced to community service instead of imprisonment**.
- **SNATCHING (Section 304):**
 - **Snatching is a type of theft where the offender forcefully seizes movable property from a person.**
 - **Punishment:** *Sentenced to up to three years in prison and shall also be fined.*

SECTIONS IN BNS	PROVISIONS SAME/AMENDED
▪ Section 305: Theft In A Dwelling House, or Means of Transportation or Place of Worship, Etc. ▪ Section 306: Theft by Clerk or Servant of Property In Possession of Master ▪ Section 307: Theft after preparation made for causing death, hurt or restraint in order to committing of theft	SAME Provisions as in IPC: Structural Change in Section no.

- **OF EXTORTION (Section 308):**
 - Extortion **occurs when someone intentionally instills fear of harm to a person or others, compelling them to hand over** property, valuable security, or anything that can be converted into a valuable security.
 - o Example: A threatens to publish a defamatory libel concerning Z unless Z gives him money. He thus induces Z to give him money. A has committed extortion.
 - **Punishment:** *Imprisonment up to seven years, or with fine, or with both.*



SECTION IN BNS	PROVISIONS SAME/AMENDED
- Section 308: Extortion: - For committing extortion put in fear of death or of grievous hurt - By way of threat of accusation - Fear of accusation of offence	SAME Provisions as in IPC: Structural Change in Section no.
Commits extortion by putting in fear of death or of grievous hurt	Amended: Imprisonment of ten years and shall also be liable to fine

▪ **OF ROBBERY AND DACOITY (Section 309):**

- In **all cases of robbery**, there is either theft or extortion.
- Theft Becomes Robbery:**
 - if, during the theft or its commission, the *offender voluntarily causes or attempts to cause death, hurt, wrongful restraint, or instills fear of instant death, instant hurt, or instant wrongful restraint to any person.*
- Extortion Becomes Robbery:**
 - when, *during the act, the offender is present with the person put in fear.*
 - The offender *induces fear* of instant death, instant hurt, or instant wrongful restraint, *compelling the person in fear to deliver the extorted item.*
 - Presence is established* if the offender is close enough to create fear of instant harm or restraint.

NOTE:

In essence, robbery encompasses situations where theft or extortion is accompanied by the threat or use of force, injury, or fear.

- o Example: A holds Z down, and fraudulently takes Z's money and jewels from Z's clothes, without Z's consent. Here A has committed theft, and, in order to the committing of that theft, has voluntarily caused wrongful restraint to Z. A has therefore committed robbery.

- **Punishment:**

SECTION IN BNS	PROVISIONS SAME/AMENDED
▪ Section 309: • Robbery Punishment • Robbery if occurs on the highway between sunset and sunrise • Attempt to commit robbery • Voluntarily causing hurt in committing robbery	SAME Provisions as in IPC: Structural Change in Section no.

- **DACOITY (Section 310):**

- Dacoity is **when five or more people work together to commit or attempt robbery**. It includes those actively involved in the act and those present and aiding the commission or attempt.

There **is no difference between the robbery and dacoity**, except for the number of offenders. Group of people which is five or more than five in number makes an attempt to commit robbery or aids in committing or attempting a robbery, is said to commit dacoity.

- In the case of Amrisha Devnarayan v. the State of Gujarat, the Court ruled that to establish dacoity, certain facts must be proven:
 - o *involvement of five or more persons* as accused in the commission of the offense;
 - o the *attempt to commit the offense* or the actual commission of the offense should be a joint effort.
 - o these *essential facts need to be demonstrated in Court* to establish the crime of dacoity.
- **Punishment:**

SECTIONS IN BNS	PROVISIONS SAME/AMENDED/NEW
▪ Section 310: Dacoity: • Punishment • Dacoity with murder • Preparation to commit dacoity • Someone as a part of a group of five or more individuals gathered with the intent to commit dacoity • Section 311: Robbery, or dacoity, with attempt to cause death or grievous hurt	SAME Provisions as in IPC: Structural Change in Section no.
• Section 313: Belonging to gang of robbers, etc.	New: Imprisonment up to seven years
• Section 312: Attempt to commit robbery or dacoity when armed with deadly weapon	Rigorous imprisonment up to seven years, and shall also be liable to fine

OF CRIMINAL MISAPPROPRIATION OF PROPERTY

- **DISHONEST MISAPPROPRIATION OF PROPERTY (Section 314):**
 - Anyone who dishonestly misappropriates or converts movable property for personal use shall **be punished with imprisonment, ranging from a minimum of six months to a maximum of two years, along with a fine.**
 - Example: A takes property belonging to Z out of Z's possession, in good faith believing at the time when he takes it, that the property belongs to himself. A is not guilty of theft; but if A, after discovering his mistake, dishonestly appropriates the property to his own use, he is guilty of an offence under this section.
 - In the case of **Ramaswami Nadar v. the State of Maharashtra**, the Hon'ble Supreme Court clarified that the phrase "converts to his own use" in Section 403 of IPC **implies that the accused has utilized the property in a manner that goes against the rights of the property owner.** This emphasizes that any use of the property by the accused should be in violation of the owner's rights to constitute an offense under this section.



- A **dishonest misappropriation for a time only is a misappropriation** within the meaning of this section.
 - o Example: A finds a Government promissory note belonging to Z, bearing a blank endorsement. A, knowing that the note belongs to Z, pledges it with a banker as a security for a loan, intending at a future time to restore it to Z. A has committed an offence under this section.
- If a **person finds property with no owner around and takes it to protect or return it, it's not considered dishonest misappropriation**. However, if they later **use it for themselves without trying to find the owner, it becomes an offense**.
 - o The concept of "reasonable means" and "reasonable time" is subjective and depends on the circumstances. The finder doesn't need to know the specific owner; it's enough if, at the time of taking, they don't believe it's their own or genuinely believe the real owner can't be found.
 - o Example:
 - ✚ A finds a rupee on the high road, not knowing to whom the rupee belongs, A picks up the rupee. Here A has not committed the offence defined in this section.
 - ✚ A finds a letter on the road, containing a bank-note. From the direction and contents of the letter he learns to whom the note belongs. He appropriates the note. He is guilty of an offence under this section.

SECTION IN BNS	PROVISIONS SAME/AMENDED
▪ Section 315: Dishonest misappropriation of property possessed by deceased person at the time of his death	SAME Provisions as in IPC: Structural Change in Section no.

OF CRIMINAL BREACH OF TRUST▪ **CRIMINAL BREACH OF TRUST (Section 316):**

- Any person entrusted with property or having control over it, who dishonestly misappropriates, converts it for personal use, or violates the prescribed mode of trust discharge, commits criminal breach of trust. This includes dishonest use or disposal contrary to legal directions or contracts, whether express or implied, and allowing someone else to do so willfully.
 - Example:* A, a carrier, is entrusted by Z with property to be carried by land or by water. A dishonestly misappropriates the property. A has committed criminal breach of trust.



- In the case of Shiva Sagar Tiwari v. Union of India, the Supreme Court ruled that a minister, in handling public property, holds the position of a trustee. It is the **minister's duty to deal justly and fairly with public property. Failure to do so can lead to liability for criminal breach of trust.** This underscores the responsibility of public officials to act in the best interests of the public when entrusted with public resources.

SECTIONS IN BNS	PROVISIONS SAME/AMENDED/NEW
▪ Section 316: Dacoity: • Punishment • Criminal breach of trust by carrier, etc. • Criminal breach of trust by clerk or servant • Criminal breach of trust by public servant, banker, merchant or agent	Imprisonment of five years or with fine, or with both SAME Provisions as in IPC: Structural Change in Section no.

OF RECEIVING STOLEN PROPERTY

- **STOLEN PROPERTY (Section 317):**
 - **Stolen property includes** assets transferred through theft, extortion, robbery, cheating, or criminal misappropriation or breach of trust, **regardless of whether the actions occurred within or outside India**. However, **if the property later falls into the possession of someone legally entitled to it, it is no longer considered stolen.**

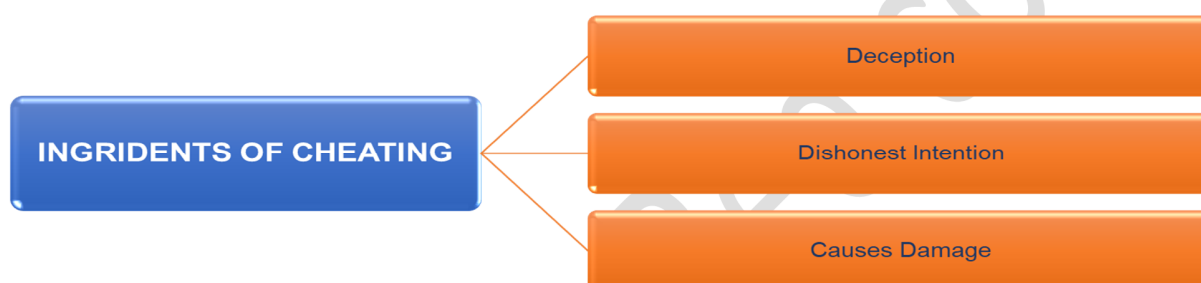


SECTIONS IN BNS	PROVISIONS SAME/AMENDED
▪ Section 317: Stolen Property: • Punishment • Dishonestly receiving property stolen in the commission of a dacoity • Habitually dealing in stolen property • Assisting in concealment of stolen property	SAME Provisions as in IPC: Structural Change in Section no.

OF CHEATING

▪ CHEATING (Section 318):

- Anyone who, **through deception, fraudulently induces another person to deliver property, consent to retaining property, or engage in actions that cause harm** is considered to have committed cheating.
- **Dishonest concealment of facts** is considered deception under this section.
 - Explanation: A, by falsely pretending to be in the Civil Service, intentionally deceives Z, and thus dishonestly induces Z to let him have on credit goods for which he does not mean to pay. A cheats.



• Punishment:

SECTIONS IN BNS	PROVISIONS SAME/AMENDED/NEW
▪ Section 318: Dacoity: • Punishment • Cheating with knowledge that wrongful loss may ensue to person whose interest offender is bound to protect • Cheating and dishonestly inducing delivery of property or manipulate a valuable security	Amended: - Imprisonment of three years or with fine, or with both - Imprisonment of five years or with fine, or with both - SAME Provisions as in IPC: Structural Change in Section no.

▪ CHEATING BY PERSONATION (Section 219):

- A person commits the offense of cheating by **personation** if they **deceive others by pretending to be someone else, knowingly substituting one person for another, or representing that they or someone else is a person other than their true identity.**
- It does not matter if the **person being impersonated is real or imaginary**; the offense is still committed.

- In the case of **Sushil Kumar Datta v. State of West Bengal**, the accused **falsely presented himself as a Schedule Caste candidate** during an IAS examination, **leading to his selection and appointment**. The Court ruled that the conviction under Section 420 of IPC (related to cheating and dishonestly inducing delivery of property) is justified, holding the accused liable for his false representation.
 - Example: A cheats by pretending to be a certain rich banker of the same name. A cheats by personation.

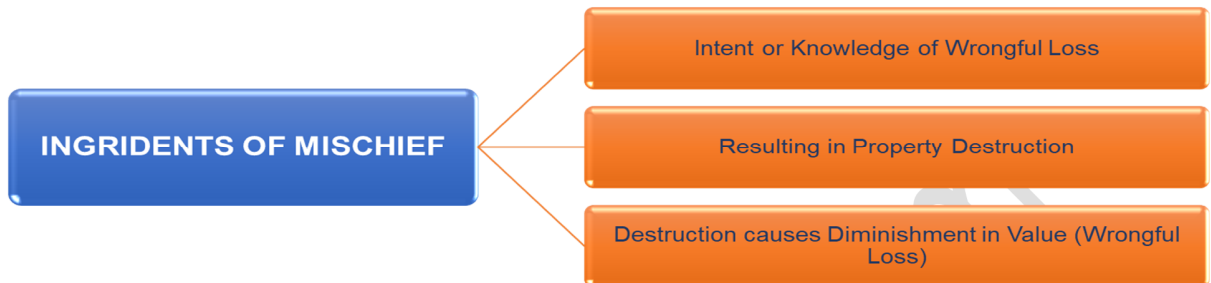
OF FRAUDULENT DEEDS AND DISPOSITIONS OF PROPERTY

- The offenses under this category pertain to **unlawful actions concerning debts owed to creditors, as well as the transfer of assets and liabilities**. This legal framework is designed to **safeguard the interests of creditors and bona fide purchasers, among others**.

SECTIONS IN BNS	PROVISIONS SAME/AMENDED/NEW
▪ Section 320: Dishonest or fraudulent removal or concealment of property to prevent distribution among creditors ▪ Section 321: Dishonestly or fraudulently preventing debt being available for creditors	SAME Provisions as in IPC: Structural Change in Section no.
▪ Section 322: Dishonest or fraudulent execution of deed of transfer containing false statement of consideration	New: Imprisonment of three years or with fine, or with both
▪ Section 323: Dishonest or fraudulent removal or concealment of property	Imprisonment of three years or with fine, or with both

OF MISCHIEF

- **MISCHIEF (Section 324):**
 - A person commits mischief when, **with the intent to cause wrongful loss or damage to the public or any person, or knowing that such harm is likely, they cause the destruction of any property or make changes to it that diminish its value, utility, or adversely affect it**.
 - For the offense of mischief, **it is not necessary for the offender to intend harm specifically to the owner of the damaged property**. It is **sufficient if the intent is to cause wrongful loss or damage to any person**, whether or not they are the owner of the property.
 - Mischief can **be committed by an act affecting property belonging solely to the person committing the act or property owned jointly by that person and others**.
 - Example: A voluntarily burns a valuable security belonging to Z intending to cause wrongful loss to Z. A has committed mischief.



- **Punishment:**
 - o Guilty of committing mischief shall be punished with imprisonment up to six months, or with fine, or with both.

OF CRIMINAL TRESPASS

- **CRIMINAL TRESPASS AND HOUSE-TRESPASS (Section 329):**
 - A person is said to commit criminal trespass if they enter or go upon another person's property with the intent to commit an offense, intimidate, insult, or annoy anyone in possession of the property. This offense also includes unlawfully remaining on the property with the intent to intimidate, insult, annoy, or commit an offense after lawfully entering the premises.



- A person commits house-trespass if they enter or remain in any building, tent, or vessel used as a human dwelling, or any building used for worship or as a place for the custody of property. The introduction of any part of the trespasser's body is sufficient to constitute house-trespass.
- **Punishment for Criminal Trespass:** Imprisonment up to *three months*, or with fine up to *five thousand rupees*, or with both.
- **Punishment for House Trespass:** Imprisonment up to *one year*, or with fine up to *five thousand rupees*, or with both.

OF OFFENCES RELATING TO DOCUMENTS AND TO PROPERTY MARKS CHAPTER XVIII SECTION 335-348

- **MAKING A FALSE DOCUMENT (Section 335):**
 - **Making False Documents or Electronic Records:** A person is guilty of making false documents or electronic records if:
 - o **Creation with Intent to Deceive:**
 - ✚ Dishonestly or fraudulently makes, signs, seals, or executes a document or part of a document.
 - ✚ Makes or transmits any electronic record or part of it.
 - ✚ Affixes any electronic signature on any electronic record.
 - ✚ Makes any mark denoting document execution or electronic signature authenticity.
 - ✚ Intentionally creates the false impression that it was made, signed, sealed, executed, transmitted, or affixed by someone authorized, when it was not.

- o **Unauthorized Alteration:** Dishonestly or fraudulently alters a document or electronic record in a significant part, without lawful authority, after its creation.
- o **Deceptive Influence:** Dishonestly or fraudulently induces someone, who is mentally incapacitated or deceived, to sign, seal, execute, or alter a document or electronic record or to affix their electronic signature, knowing they are unaware of the content due to unsoundness of mind, intoxication, or deception.
 - ✚ Example: A has a letter of credit upon B for rupees 10,000, written by Z. A, in order to defraud B, adds cipher to the 10,000, and makes the sum 1,00,000 intending that it may be believed by B that Z so wrote the letter. A has committed forgery.
- **A man's signature of his own name may amount to forgery.**
 - o Example: A signs his own name to a bill of exchange, intending that it may be believed that the bill was drawn by another person of the same name. A has committed forgery.
- **Creating a false document using the name of a fictitious person,** with the intention of making it appear as if the document was made by a real person, or using the name of a deceased person, with the intention of making it appear as if the document was made during their lifetime, can amount to forgery.
 - o Example: A draws a bill of exchange upon a fictitious person, and fraudulently accepts the bill in the name of such fictitious person with intent to negotiate it. A commits forgery.

NOTE:

In this section, the term "affixing electronic signature" carries the meaning assigned to it in clause (d) of sub-section (1) of section 2 of the Information Technology Act, 2000.

- **FORGERY (Section 336):**
 - A person commits forgery if they make any false document or false electronic record, or any part thereof, with the intent to cause damage or injury to the public or any person, to support any claim or title, to induce someone to part with property, or to enter into any express or implied contract, or with the intent to commit fraud or enable the commission of fraud.
- **FORGED DOCUMENT OR ELECTRONIC RECORD AND USING IT AS GENUINE (Section 340):**
 - A document or electronic record made wholly or partially by forgery is termed a forged document or electronic record.

- Anyone who fraudulently or dishonestly uses a document or electronic record, knowing or having reason to believe it is forged, shall **be punished as if they had forged it themselves**.

SECTIONS IN BNS	PROVISIONS SAME/AMENDED/NEW
▪ Section 336: • Forgery Punishment • Forgery for purpose of cheating • Forgery for purpose of harming reputation ▪ Section 337: Forgery of record of Court or of public register, etc. ▪ Section 338: Forgery of valuable security, will, etc. ▪ Section 339: Having possession of document described in section 337 or section 338, knowing it to be forged and intending to use it as genuine ▪ Section 341: Making or possessing counterfeit seal, etc., with intent to commit forgery punishable under section 338 ▪ Section 342: Counterfeiting device or mark used for authenticating documents described in section 338, or possessing counterfeit marked material ▪ Section 343: Fraudulent cancellation, destruction, etc., of will, authority to adopt, or valuable security ▪ Section 344: Falsification of accounts	SAME Provisions as in IPC: Structural Change in Section no.
▪ Section 341(3): Possesses any seal, plate or other instrument knowing the same to be counterfeit	New: Imprisonment of three years and shall also be liable with fine

OF PROPERTY MARKS

- **PROPERTY MARK (SECTION 345):**
 - A mark used for denoting that movable property belongs to a particular person is called a property mark.
 - Anyone who marks movable property, goods, or any container like a case or package, in a way that reasonably leads others to believe that the marked property or goods, or the contents of the marked receptacle, belong to someone to whom they do not actually belong, is said to use a false property mark.

SECTIONS IN BNS	PROVISIONS SAME/AMENDED/NEW
▪ Section 345: • Using False Property Mark ▪ Section 346: Tampering with property mark with intent to cause injury ▪ Section 347: • Counterfeiting a property mark • Counterfeiting a mark used by a public servant ▪ Section 348: Making or possession of any instrument for counterfeiting a property mark ▪ Section 349: Selling goods marked with a counterfeit property mark ▪ Section 350: Making a false mark upon any receptacle containing goods	SAME Provisions as in IPC: Structural Change in Section no.

OF CRIMINAL INTIMIDATION, INSULT, ANNOYANCE, DEFAMATION, ETC. CHAPTER XIX SECTION 351-356

- **CRIMINAL INTIMIDATION (Section 351):**
 - A person commits criminal intimidation **if they threaten another using any means, with the intent to cause harm to the person, their reputation, or their property, or to the person or reputation of someone the individual cares about.**
 - The **aim is to create** alarm, force the person to perform an act they are not legally obligated to do, or prevent them from doing an act they are legally entitled to do, as a means of avoiding the execution of the threat.
 - A **threat to injure the reputation of any deceased person in whom the person threatened is interested**, is within this section.
 - Example: A, for the purpose of inducing B to resist from prosecuting a civil suit, threatens to burn B's house. A is guilty of criminal intimidation.

SECTIONS IN BNS	PROVISIONS SAME/AMENDED/NEW
▪ Section 351: • Punishment for Criminal Intimidation • Criminal intimidation by threatening to cause death or grievous hurt, etc. • Criminal intimidation by an anonymous communication ▪ Section 352: Intentional insult with intent to provoke breach of peace ▪ Section 353: Statements conducing to public mischief • Statements creating or promoting enmity, hatred or ill-will between classes • Aggravated Offense in Religious Places ▪ Act caused by inducing person to believe that he will be rendered an object of Divine displeasure	SAME Provisions as in IPC: Structural Change in Section no.
▪ Section 355: Misconduct in public by a drunken person	Amended: Simple imprisonment for up to twenty-four hours or with fine of up to one thousand rupees or with both or with community service

OF DEFAMATION

- **Making or publishing any imputation about a person through spoken or written words, signs, or visible representations, with the intent to harm or with knowledge or reason to believe that it will harm the reputation of that person, constitutes defamation.**
 - **Defamation of Deceased Persons:** Defamation may be applicable even to imputations about a deceased person *if such imputation would harm the reputation of the person if they were alive*. This is particularly relevant if the *intention is to cause hurt to the feelings of the deceased person's family or close relatives*.

- o **Defamation of Companies or Associations:** Making an imputation concerning a company, association, or a group of persons as a collective entity may also amount to defamation. This extends the scope of defamation to include harm to the reputation of not only individuals but also corporate entities or groups.
- o **Irony or Alternative Imputations in Defamation:** An imputation presented in the form of an alternative or expressed ironically may still be considered defamation. This provision recognizes that the manner in which an imputation is framed, even if presented as an alternative or ironic statement, can still have defamatory implications and be subject to legal consequences.
- o **Criteria for Harmful Imputation:** For an imputation to be considered harmful to a person's reputation, it must, either directly or indirectly, in the eyes of others:
 - ✚ Lower the moral or intellectual character of the person.
 - ✚ Lower the character of the person in respect of their caste or calling.
 - ✚ Lower the credit of the person.
 - ✚ Cause others to believe that the body of the person is in a loathsome or generally disgraceful state.
- o **Example:** A says— "Z is an honest man; he never stole B's watch"; intending to cause it to be believed that Z did steal B's watch. This is defamation, unless it falls within one of the exceptions.
- **Exceptions:** Certain cases may be exempted as per specific exceptions outlined elsewhere in the law as under:
 - o **Truth as a Defense in Defamation:** Truth serves as a defense in defamation cases. If an imputation is true concerning any person and is deemed to be for the public good, it is not considered defamation. The determination of whether it is for the public good is a factual question that needs to be assessed in each specific case.
 - o **Protection for Expressing Opinion on Public Servants:** Expressing an opinion in good faith about the conduct of a public servant in the discharge of their public functions, or about their character as revealed through that conduct, is not considered defamation. This provision protects individuals who, in good faith, express opinions on the performance and character of public servants within the scope of their official duties.
 - o **Protection for Expressing Opinion on Public Questions:** Expressing an opinion in good faith about the conduct of any person regarding a public question, and about their character as revealed through that conduct (within the scope of that public question), is not considered defamation. This provision safeguards the expression of opinions on matters of public concern, as long as the opinions are made in good faith and are relevant to the public question at hand.

- o **Reporting Court Proceedings:** Publishing a substantially true report of the proceedings of a court or the result of such proceedings is not considered defamation. This exception recognizes the importance of accurately reporting legal proceedings and outcomes without constituting defamation, provided the report is substantially true.
- o **Inquiry by Magistrate as a Court:** A Magistrate or another officer conducting an inquiry in an open court as a preliminary step to a trial in a court is considered a court within the context of the relevant section.
- o **Opinion on Decided Cases:** Expressing, in good faith, an opinion about the merits of any case, whether civil or criminal, that has been decided by a court is not defamation. Similarly, sharing an opinion about the conduct of any person involved in the case (party, witness, or agent) or their character, to the extent revealed in their conduct during the case, is also protected from being considered defamation.
- o **Opinion on Public Performances:** Expressing a good-faith opinion about the merits of a performance submitted to public judgment or sharing an opinion about the author's character, as evident in the performance, is not considered defamation. This protection applies when the author voluntarily submits the performance to public judgment, either explicitly or through actions implying such submission.
- o **Censure by Authority:** A person with authority over another, either conferred by law or arising from a lawful contract, is not engaging in defamation when passing, in good faith, any censure on the conduct of the other party in matters related to the lawful authority.
- o **Good Faith Accusation to Lawful Authority:** Preferring, in good faith, an accusation against any person to those who have lawful authority over that person regarding the subject matter of the accusation is not considered defamation.
- o **Imputation for Protection of Interests:** Making an imputation on the character of another is not defamation if it is done in good faith for the protection of the interests of the person making it, or of any other person, or for the public good.
- o **Protection for Cautions:** Conveying a caution in good faith, aimed at the welfare of the person to whom it is conveyed, or of someone in whom that person has an interest, or for the public good, is not considered defamation.

SECTIONS IN BNS	PROVISIONS SAME/AMENDED/NEW
▪ Section 356: • Printing or engraving matter known to be defamatory • Sale of printed or engraved substance containing defamatory matter	SAME Provisions as in IPC: Structural Change in Section no.
▪ Section 356: • Punishment for defamation	Amended: Imprisonment up to two years, or with fine, or with both, or with community service